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Medical Research: Guarantees to be Adopted in Cases Where It Is Not Possible to Obtain Patient Consent

The Adoption of New Ethical Rules for Treatments for Statistical or Scientific Research Purposes Has Been Promoted

Following the recent reform of Article 110 of the Privacy Code, the Privacy Authority has identified the initial guarantees to be adopted for the processing of personal data for medical, biomedical, and epidemiological research purposes, concerning deceased or uncontactable patients.

With the amendment of Article 110, in fact, those conducting medical research—when it is impossible to inform the subjects or the obligation involves a disproportionate effort, or risks severely compromising the results of the study—are no longer required to submit the research project and the related impact assessment for prior consultation, as it is sufficient to comply with the specific guarantees provided by the Authority.

The Authority has indeed established that in all these cases, the data controllers—besides obtaining, as already required, the favorable opinion of the competent Ethical Committee at the territorial level on the research project—must justify and document the ethical or organizational reasons for which they could not obtain the consent of the patients, as well as conduct and publish the impact assessment, notifying the Authority.

With the same provision, the Authority, in light of the regulatory reform and considering the significant impact of new technologies on the execution of research activities, has promoted the initiation of the procedure for the adoption of new ethical rules for treatments for statistical or scientific research purposes.

The Authority therefore invites public and private entities that believe they have the right to subscribe to the Ethical Rules, and stakeholders with a qualified interest who wish to participate in the proceedings, to communicate this and provide information and documentation to the address protocollo@pec.gpdp.it, within 60 days from the publication of the provision in the Official Gazette.

Telemarketing: Privacy Authority Imposes Fines of 100,000 Euros on Two Energy Providers Calls Without Consent and Activation of Unrequested Contracts

The Privacy Authority continues its action against aggressive telemarketing. The Authority has imposed a fine of 100,000 euros on a provider operating in the electricity and gas supply contracts sector for the unlawful processing of personal data.

The Authority acted following 2 complaints and 56 reports from users who complained about receiving unwanted calls and the activation of unrequested energy contracts. From the Authority's checks, it emerged that the calls were made without the consent of the subjects and were mostly directed at users registered in the Public Opposition Register (RPO). The contact lists were acquired by the call center through third-party companies and its own network of agents or brokers. Furthermore, from a random check, the Authority found that within a week, the call center had unlawfully contacted 106 users who subsequently concluded an energy supply contract.

In light of the seriousness of the violations found, the Authority therefore imposed a fine of 100,000 euros on the call center. The Authority also ordered the call center to implement appropriate technical, organizational, and control measures so that the processing of users' personal data complies with privacy regulations throughout the entire supply chain. *The provision has been challenged.

A fine, also of 100,000 euros, was imposed by the Authority on another energy provider.

In declaring the processing of personal data for telemarketing purposes unlawful, in this case as well, the Authority found that the calls were made without the consent of the subjects and using numbers of users registered in the Public Opposition Register.

Privacy Authority: No to the Publication of Images Harmful to the Dignity of the Patient

Mother of a Disabled Girl Warned

Images harmful to the dignity of a patient cannot be published even to denounce their difficult quality of life.

This was reiterated by the Privacy Authority in warning the mother of a young woman who became paralyzed due to an attack by her ex-boyfriend.

The Authority acted following a complaint filed by the support administrator of the girl, who reported a violation of privacy regulations concerning the dissemination on social media of images and news related to the health and private life of the young woman, perpetrated by her mother. The posts also included details of the news events of which she had been a victim and some confidential information related to her legal proceedings.

The Guarantor, in light of what emerged during the investigation, declared the complaint well-founded. The posts disseminated on the mother's social media profile indeed depicted the young woman in the peculiar conditions of her health status and without any form of blurring, thus rendering the images harmful to her dignity. In particular, two of these: one depicted the girl with shaved hair and the other lying on a wheelchair with her mouth partially open.

The Authority, however, deemed it lawful to disseminate the posts that did not contain "raw" content as they fell within the forms of free expression of thought. In its ruling, the Guarantor recalled that the dissemination of health data is subject to the Ethical Rules that apply not only to those engaged in journalistic activities but to anyone who publishes, even occasionally, articles, essays, and other expressions of thought.

In particular, the Ethical Rules identify precise limits to the dissemination of health data, establishing as core principles the respect for the dignity of the patient, the right to their privacy, and personal decorum, especially in the case of serious or terminal illnesses. This applies even when photos and information are used to denounce the quality of life of the sick person or related assistance issues.

In concluding the proceedings, the Guarantor for the protection of personal data deemed the measure of admonition sufficient, as the mother had acted in good faith with the intent of bringing media attention to her daughter's condition.

****Video Surveillance and Attendance Monitoring: The Privacy Guarantor Sanctions a Municipality****

The installation of "electronic eyes" in workplaces must comply with the obligations set forth by the Workers' Statute and the guarantees provided to employees by privacy regulations. This principle was reiterated by the Privacy Guarantor, which imposed a fine of 3,000 euros on a Municipality for unlawful processing of personal data.

The Authority intervened following a report from an employee who complained about the installation of a camera in the Municipality's atrium, near the devices for monitoring employee attendance. Through the use of the recorded images, the administration had contested some violations of the employee's duties, including failure to comply with working hours. In response to the Authority's request for explanations, the Municipality stated that the camera had been installed for security reasons, following some assaults against a councilor and a social worker.

During the investigation, the Guarantor noted that the Municipality had not ensured compliance with the guarantee procedures required by the sector regulations regarding remote monitoring and had furthermore used the surveillance images to adopt a disciplinary measure against the employee.

The Authority therefore sanctioned the Administration, also ordering it to provide all interested parties (employees and visitors at the municipal office) with appropriate information regarding the personal data processed through the use of the camera in question. The Municipality had indeed not provided all the informational elements required by the European Regulation, nor could other documents prepared by the data controller for different purposes be considered adequate.

****THE ACTIVITIES OF THE GUARANTOR - FOR THOSE WHO WANT TO KNOW MORE****

The most important interventions and measures recently adopted by the Authority

- Spotlight of the Privacy Guarantor on Invalsi tests in the student's curriculum – Press release of May 11, 2024
- Facial recognition in Rome, the Guarantor opens an investigation. A request for information sent to Rome Capital regarding a surveillance project in metro stations – Press release of May 9, 2024

****NEWSLETTER of the Guarantor for the protection of personal data**** (Reg. at the Court of Rome No. 654 of November 28, 2002).

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